

Balrani Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · WRIT-C No. 9458 of 2022 · **Disposed with liberty to file a Para 6.5 objection; coercive action stayed.**

HEADNOTE

Writ challenging an assessment notice dated 17.11.2021 disposed without any finding on merits, with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks. If filed in time, the objection is to be decided after hearing, preferably within four weeks. Coercive action on the demand is stayed for eight weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Balrani Devi petitioned the Allahabad High Court in Writ-C No. 9458 of 2022 against the State of Uttar Pradesh and another. She challenged an assessment notice dated 17 November 2021 issued by respondent no. 2, the power distribution corporation, and asked that her objection dated 6 December 2021 be decided within a short time. Counsel for the corporation stated on instructions that she could file an objection to the demand, which would be decided in accordance with law within a fixed period.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

objection to assessment demand

HOLDING

Without expressing any opinion on the merits, the writ was disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks, along with a certified copy of the order. If submitted within that period, the objection shall be decided in accordance with law, expeditiously and preferably within the next four weeks, after a reasonable opportunity of hearing. For eight weeks or until disposal of the objection, whichever is earlier, no coercive action shall be taken on the impugned demand. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The challenge to the assessment notice was not decided in the writ. The petitioner was left to file an objection under Para 6.5 before the licensee, to be decided after hearing. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed assessment demand of 17.11.2021 was relegated to an objection under Para 6.5, with a four-week outer limit to file and a further four weeks, preferably, for decision. ¶ 1

6.5-representation-as-appropriate-remedy On the licensee's statement that an objection would be decided in accordance with law, the Court treated a Para 6.5 objection as the remedy and declined to quash the demand or rule on it. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT NOTICE DATED 17.11.2021 IS LIABLE TO BE QUASHED

The Court expressed no opinion on the merits. Correctness of the demand is for respondent no. 2 on a Para 6.5 objection filed within four weeks. ¶ 1

